

PRIVACY POLICY

This policy was last updated 16 May 24.

This Privacy Policy governs the collection and use of personal information by Root Name Service (RNS, we, us or our).

Your Privacy Rights

1. RNS is committed to protecting and respecting your privacy. In addition, we are subject to the Privacy Act 1988 and the Australian Privacy Principles guidelines, which form part of that Act.. Any personal information we collect and hold will be stored, used and disclosed in accordance with the Privacy Act and this Privacy Policy.
2. In addition to our privacy obligations under the Privacy Act, to the extent that we collect personal information about individuals residing in the European Union (EU) or the United Kingdom (UK), we act as a data controller for the purpose of the General Data Protection Regulation (EU) 2016/679 (GDPR) and UK General Data Protection Act (UKGDPR).
3. This Privacy Policy should be read in conjunction with any applicable terms and conditions relating to the use of and access to our website <https://rootnameservice.com> (Website), or subdomains thereof. The RNS identity registration services represented as non-fungible tokens on public blockchain networks (NFTs), along with our other products and/or services (collectively referred to in this policy as Services).
4. If you have any questions regarding this Privacy Policy or wish to access or amend the personal information that we hold about you, please contact us at support@rootnameservice.com.

Acceptance of This Privacy Policy

5. You acknowledge that you have read and understood this Privacy Policy, and authorise us to collect, use, disclose and retain your personal information as described in this Privacy Policy when you access or use any of our Services, or otherwise provide us with any personal information.

Amendments and Changes to This Privacy Policy

6. We reserve the right to update or modify this Privacy Policy at any time and from time to time without prior notice. However, we will make an effort to communicate any significant changes to you by posting a notice on our website, and/or by sending you an email notification to the email address you have provided us, if applicable. Such modifications will become effective immediately upon the posting thereof. Therefore, we encourage you to periodically review this page for the latest information on our privacy practices.
7. It is your responsibility to review this Privacy Policy regularly and be aware of any changes. Your continued use of the website after any such changes constitutes your acceptance of the new Privacy Policy. If you do not agree with the changes in our policy, you should stop using our website immediately.

In addition to the above, we may also notify you of changes to the Privacy Policy in other ways that are consistent with the methods by which we typically communicate with you based on the contact information you have provided to us.

Please note that we will not make any changes that result in the lessening of protection of your personal information collected in the past without your consent.

Why Do We Collect Personal Information?

8. RNS collects, uses and discloses personal information to provide you with access to and use of our Services, including but not limited to, providing RNS and associated NFTs, to market and promote RNS and our Services, to develop and improve our Services, to manage our workforce and to meet our legal obligations.

Lawful Basis for Processing Your Personal Information

9. The legal basis on which we process your personal information is as follows:
 - a. Where you have given your consent: This applies where you have freely given an informed, specific and unambiguous indication that we are permitted to collect and process your personal information. At any time, you may revoke your consent to the processing of some or all of your personal information by:
 - i. emailing our data protection officer; and/or
 - ii. using the “unsubscribe” function in any communication that we send to you.
 - b. If you revoke your consent, we may need to stop providing you with services if consent is the only legal basis for our processing of your personal information. The withdrawal of your consent will not affect processing of personal information that occurs before you

notify us that you have withdrawn your consent. Performance of a contract: This applies if processing your personal information is necessary for the performance of a contract you are a party to. For example, if we are providing you with goods or Services on the basis of our standard terms and conditions.

- c. For our legitimate business interests: This applies where the processing of your personal information is necessary for us to:
 - i. service our clients and manage our staff, and community.
 - ii. conduct market research and analysis to help us improve and customise our Services; and
 - iii. perform marketing and development activities (unless your consent is required for such activities).

What Personal Information Do We Collect?

- 10. The type of personal information that we collect will depend on the purpose for which it is collected, and the Services you have requested, but may include:
 - a. name and contact details, including your email address, phone number and postal address;
 - b. your associated usernames or aliases;
 - c. your blockchain address, which may become associated with personal information;
 - d. Website user data, collected when you visit our Websites. Website user data may include your IP address, cookies, device information, unique device identifiers, operating system and version and mobile network information.
 - e. information necessary to fulfil any regulatory compliance obligations we may have, including but not limited to, in the event that we are required to comply with the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (AML/CTF Act); and
 - f. any other information that we may require from time to time for the purposes set out in this Privacy Policy.

Special Categories of Personal Information

- 11. Generally, we do not collect any special categories of personal information, such as information that reveals racial or ethnic origin, political opinions, religious or philosophical belief, trade union membership, genetic data, biometric data, health status, sex life or sexual orientation. However, occasionally this type of information may be relevant to our interactions with you. If such information is required, we will only collect and process this type of personal information with your explicit consent and for the purposes set out in this Privacy Policy.

How and Why Do We Collect Information About You

12. Most of the information we process will be collected directly from you, when you:
- access one of our digital platforms like our Websites, or any website associated with our projects, such as <https://rootnameservice.com>
 - access any social media platforms, rooms or servers that we have administrative rights to
 - subscribe to any newsletter or publication of RNS;
 - purchase merchandise, products or services from us, through us or through third-party services;
 - participate in, or otherwise attend, any event, marketing campaign, competition, promotion or similar event run by RNS;
 - provide details to us in any feedback or contact us form;
 - otherwise contact us through social media, email, telephone or other means, and
 - apply for employment or a volunteer position with us; or we are required to do so by law.
13. If you provide us with personal information relating to another individual, e.g., a joint applicant, you warrant and represent to us that you have obtained that individual's authorisation to provide us with their personal information and have informed them of the terms of this Privacy Policy.
14. When you use our Website/s, we may collect non-personally identifiable information that is sent to us by your computer, mobile device or other access device. The information that is sent to us may include your computer IP address, referral URL, geo-location and data about the webpage/s that you access.
15. If you choose not to provide personal information to us on request you may be ineligible to participate in certain events or competitions run by RNS, or we may be unable to provide certain Services to you, or it may affect the quality of those Services. Please contact us if you are unsure what information is important and how this might affect you.
16. We will only use and disclose your personal information in accordance with your authorisation and/or for the purposes set out in this Privacy Policy, which shall include:
- to provide you with access to and use of our Services, including but not limited to, helping you view, explore, create or modify NFTs, using our tools and, at your own discretion, connect directly with us or others to purchase, sell, or transfer NFTs on public blockchain networks;
 - use in accordance with permissions granted through your RNS Account;
 - to communicate with you (for example to provide customer support or to ask you for feedback about our Services);
 - to facilitate your use of our Services and help provide a more personalised experience;
 - to facilitate, develop, run and improve events, and competitions operated by RNS;
 - where you qualify for other assets in the future from other parts of our ecosystem (including the RNS) with our affiliates and related companies so that they can communicate with you regarding those other assets, allocations for air drops etc;
 - to research and help improve and enhance our Services;

- h. to undertake regulatory compliance and administrative functions associated with our business;
- i. to conduct market analysis and perform data analytics on customer behaviour and insights in relation to our Services;
- j. to comply with any legal obligations or as otherwise permitted by the Privacy Act 1988 and the Australian Privacy Principles guidelines, which form part of that Act;
- k. subject to you providing your consent (in accordance with the Spam Act 2003), sending you electronic messages to promote and market our Services, and
- l. for any other purpose expressly authorised by you.

17. We use cookies for site functionality, remembering user's settings (e.g., source & destination country), and for authentication. Users can control the use of cookies at the individual browser level. If you reject cookies some features or areas of our site will be limited.

18. Where you consent to us using your personal information for marketing and promotional communications, you can opt out at any time by notifying us at support@rootnameservice.com or by clicking the unsubscribe function included in any of our marketing communications.

Who We May Disclose Your Personal Information To

19. In carrying out the purposes set out above, we may disclose your personal information to:
- a. any subsidiaries, joint ventures, or other companies under our common control (Affiliates), in which case we will require our Affiliates to honour this Privacy Policy;
 - b. any service providers that we have engaged to provide a service to us in relation to our Services, such as third parties who provide us with IT, marketing or customer support services;
 - c. our professional advisors, including but not limited to, accountants, insurers and lawyers;
 - d. any other person or organisation that you have authorised us to disclose your information to, and/or
 - e. government departments, regulators, and any other third party where such disclosure is permitted under the Privacy Act and/or any other applicable law.

Transfer of Information Overseas

20. We generally hold your information in Australia. However, certain personal information may be transferred and/or stored outside of Australia by our third party service providers or staff or contractors working remotely. If we need to disclose your personal information to third parties outside of Australia, we will comply with our obligations under the Privacy Act in relation to offshore disclosures of personal information including, if necessary, ensuring that those third

parties are subject to privacy obligations that overall provide comparable safeguards to those in the Privacy Act.

21. Where information relating to individuals residing in the EU/UK is transferred outside of the European Economic Area, UK or Australia, it will be:
- a. to a related company that is subject to binding corporate rules;
 - b. to a country or organisation that has 'adequacy' for the purpose of Article 45 of the GDPR or under the UKGDPR; or
 - c. transferred subject to the European Commission's model contracts for the transfer of personal data to third countries (i.e., the standard contractual clauses) and relevant UK standards.

Payment Card Details

22. We do not collect or store any payment card details. If we offer an online payment processing service through our Website/s, we will use a Payment Card Industry Data Security Standard compliant hosted payment service to process any payment card transactions. Your payment card details will only be collected and held securely by that third party payment processor.

Access, Correction and Retention of Your Personal Information

23. You agree that any personal information you give to us will be accurate, correct and up to date.
24. You are entitled to request access to, or correction of, the personal information we hold about you by contacting us at support@rootnameservice.com.
25. We cannot edit or delete any information that is stored on a blockchain, as we do not have custody or control over any blockchains. The information stored on a blockchain may include purchases, sales, and transfers related to your blockchain address and NFTs held at that address.
26. We will only retain your personal information for as long as it is required to achieve the purposes set out in this Privacy Policy or as otherwise required by law.

EU/UK Data Subject Rights Under the GDPR and UKGDPR

27. If you reside in the EU or UK at the time your personal information is collected by RNS, you may have certain additional rights in relation to the personal information we hold about you. These additional rights include:
- a. erasure;
 - b. restriction of processing, and

c. data portability.

28. If you wish to submit a request in regard to any these rights, please contact us at support@rootnameservice.com

Verifying Your Identity

29. To protect your privacy and security, we may also take reasonable steps to verify your identity before granting access to personal information or making corrections. We may refuse access to or correction of your personal information for any reason permitted by applicable privacy law.

Security of Information

30. Although we take reasonable steps to ensure personal information in our possession is protected and held securely, we do not make any warranties in relation to the security of any information you disclose or transmit to us, and we are not responsible for the theft, destruction, or inadvertent disclosure of your personal information where our security measures have been breached. Any transmission of personal information is conducted at your own risk.

Links to Other Sites

31. Our Website/s may have links or references to third party websites or material. Our Privacy Policy does not apply to those websites, and any information collected by such third parties is governed by that third party's privacy practices or policies. We accept no responsibility or liability for the content or privacy practices of any third-party websites.

How to Contact Us

32. If you have any queries or concerns about our Privacy Policy or our handling of your personal information please contact us at support@rootnameservice.com.